

using the most current (2021) Implicit Price Deflator for the Gross Domestic Product. This final withdrawal rule will result in an expenditure in at least one year that meets or exceeds this amount.

2. Summary of Costs and Benefits

The final withdrawal rule will withdraw the SUNSET final rule. This regulatory action will reduce the time spent by the Department performing retrospective assessments and reviews of its regulations, and time spent by the general public on comments related to these assessments and reviews anticipated under the SUNSET final rule. We monetize the likely reductions in time spent by the Department and the general public and report these impacts as cost savings. Our primary estimate of

these cost savings in 2020 dollars, annualized over 10 years, using a 3% discount rate, totals \$69.9 million. Using a 7% discount rate, we estimate \$75.5 million in annualized cost savings. Table 1 reports these primary estimates alongside a range of estimates that capture uncertainty in the amount of time it will take the Department to perform each assessment and review, and uncertainty in the amount of time the public will spend on comments.

In addition to these monetized effects, the final withdrawal rule will also reduce regulatory uncertainty and regulatory confusion anticipated under the SUNSET final rule. Given the scope of the SUNSET final rule, these impacts would have been experienced by small

businesses but also the general public, larger businesses, Tribes, States, non-governmental organizations, and other regulated entities and stakeholders across a wide range of industrial sectors. The final withdrawal rule will also reduce the time spent by the Department on other activities that we have not monetized or quantified, such as the time developing Small Entity Compliance Guides (SECGs), and it will reduce the time spent by the public monitoring regulations undergoing assessment or review and set to expire. The final withdrawal rule will also result in a disbenefit with respect to forgone information as a result of not performing the assessments and reviews.

TABLE 1—SUMMARY OF BENEFITS, COSTS AND DISTRIBUTIONAL EFFECTS OF THE FINAL WITHDRAWAL RULE

Category	Primary estimate	Low estimate	High estimate	Units			Notes
				Year dollars	Discount rate (%)	Period covered	
Benefits:							
Annualized Monetized \$millions/year					7 3		
Annualized Quantified					7 3		
Qualitative	—Reduction in regulatory uncertainty and confusion. —Disbenefits from the information foregone from not performing assessments and reviews.						
Costs:							
Annualized Monetized \$millions/year	– \$75.5 – 69.9	– \$40.1 – 37.2	– \$110.9 – 102.7	2020 2020	7 3	2022–2031 2022–2031	Cost savings from not performing assessments and reviews, and time spent by the public on comments.
Annualized Quantified					7 3		
Qualitative.							
Transfers:							
Federal Annualized Monetized \$millions/year.					7 3		
From/To	From:			To:			
Other Annualized Monetized \$millions/year.					7 3		
From/To	From:			To:			
Effects:							
State, Local or Tribal Government:							
Small Business:							
Wages:							
Growth:							

3. Summary of Changes

Compared to the preliminary regulatory impact analysis, this final regulatory impact analysis expands the discussion of regulatory alternatives, including a quantitative analysis of two additional alternatives recommended in public comments. Specifically, we analyze a policy option that would maintain the general framework of the SUNSET final rule but limit its scope to

regulations that the Department previously identified as having a significant economic impact on a substantial number of small entities. We also analyze a policy option that would maintain the SUNSET final rule's requirements related to the timeline for assessing and reviewing all of the Department's existing regulations, but without the automatic expiration

provision contained in the SUNSET final rule.

We have revised the discussion and estimates contained in this regulatory impact analysis to reflect regulatory action that administratively postponed the effective date of the SUNSET final rule. This analysis now states that the regulatory action will withdraw the SUNSET final rule, whereas the preliminary regulatory impact analysis